

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 677

BY RESOURCES AND CONSERVATION COMMITTEE

AN ACT

RELATING TO FISH AND GAME; AMENDING SECTION 36-1101, IDAHO CODE, TO PROHIBIT
BLINDS NEAR NON-NATURAL WATERING SITES; AMENDING SECTION 36-1401,
IDAHO CODE, TO REVISE PROVISIONS REGARDING VIOLATIONS; AND DECLARING AN
EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 36-1101, Idaho Code, be, and the same is hereby
amended to read as follows:

36-1101. TAKING OF WILDLIFE UNLAWFUL EXCEPT BY STATUTE OR COMMISSION
RULE OR PROCLAMATION -- METHODS PROHIBITED -- EXCEPTIONS. (a) It is unlaw-
ful, except as may be otherwise provided by Idaho law, including this title
or commission rules or proclamations promulgated pursuant thereto, for any
person to take any of the game animals, birds or furbearing animals of this
state.

(b) Except as may be otherwise provided under this title or commission
rules or proclamations promulgated pursuant thereto, it is unlawful for any
person to:

1. Hunt from Motorized Vehicles. Hunt any of the game animals or game
birds of this state from or by the use of any motorized vehicle, in-
cluding any unmanned aircraft system, except as provided by commission
rule; provided however, that the commission shall promulgate rules
which shall allow a physically disabled person to apply for a special
permit which would allow the person to hunt from a motorized vehicle
which is not in motion. A physically disabled person means a person who
has lost the use of one (1) or both lower extremities or both hands, or is
unable to walk two hundred (200) feet or more unassisted by another per-
son, or is unable to walk two hundred (200) feet or more without the aid
of a walker, cane, crutches, braces, prosthetic device or a wheelchair,
or is unable to walk two hundred (200) feet or more without great diffi-
culty or discomfort due to one (1) or more of the following impairments:
neurological, orthopedic, respiratory, cardiac, arthritic disorder,
blindness, or the loss of function or absence of a limb.

The commission shall specify the form of application for and design of
the special permit which shall allow a physically disabled person to hunt
from a motorized vehicle which is not in motion. No fee shall be charged
for the issuance of the special permit and the issuance of a special permit
shall not exempt a person from otherwise properly purchasing or obtaining
other necessary licenses, permits and tags in accordance with this title and
rules promulgated pursuant thereto. The special permit shall not be trans-
ferable and may only be used by the person to whom it is issued. A person who
has been issued a special permit which allows a physically disabled person
to hunt from a motorized vehicle not in motion shall have that permit promi-

1 nently displayed on any vehicle the person is utilizing to hunt from and the
2 person shall produce, on demand, the permit and other identification when so
3 requested by a conservation officer of the department of fish and game. A
4 person possessing a special permit shall not discharge any firearm from or
5 across a public highway. In addition to other penalties, any unauthorized
6 use of the special permit shall be grounds for revocation of the permit.

7 2. Molest with Motorized Vehicles. Use any motorized vehicle, includ-
8 ing any unmanned aircraft system, to molest, stir up, rally or drive in
9 any manner any of the game animals or game birds of this state.

10 3. Communicate from Aircraft. Make use of aircraft, including any un-
11 manned aircraft system, in any manner to spot or locate game animals,
12 game birds or furbearing animals of this state from the air and communi-
13 cate the location or approximate location thereof by any signals what-
14 soever, whether radio, visual or otherwise, to any person then on the
15 ground.

16 4. Hunt from Helicopter. Make use of any helicopter in any manner in
17 the taking of game or loading, transporting, or unloading hunters,
18 game or hunting gear in any manner except when such use is at recognized
19 airports or airplane landing fields, or at heliports which have been
20 previously established on private land or which have been established
21 by a department or agency of the federal, state or local government or
22 when said use is in the course of emergency or search and rescue oper-
23 ations. Provided however, that nothing in this chapter shall limit
24 or prohibit the lawful control of wolves or predatory or unprotected
25 animals through the use of helicopters when such measures are deemed
26 necessary by federal or state agencies in accordance with existing laws
27 or management plans.

28 5. Hunt with Aid of Aircraft. Make use of any aircraft, including any
29 unmanned aircraft system, to locate any big game animal for the purpose
30 of hunting those animals during the same calendar day those animals were
31 located from the air. Provided however, that nothing in this chapter
32 shall limit or prohibit the lawful control of wolves or predatory or un-
33 protected wildlife through the use of aircraft when such measures are
34 deemed necessary by federal or state agencies in accordance with exist-
35 ing laws or management plans.

36 6. Artificial Light. Hunt any animal or bird except raccoon by the aid
37 of a spotlight, flashlight or artificial light of any kind. The act of
38 casting or throwing, after sunset, the beam or rays of any spotlight,
39 headlight or other artificial light capable of utilizing six (6) volts
40 or more of electrical power upon any field, forest or other place by any
41 person while having in his possession or under his control any uncased
42 firearm or contrivance capable of killing any animal or bird, shall
43 be prima facie evidence of hunting with an artificial light. Provided
44 nothing in this subsection shall apply where the headlights of a motor
45 vehicle, operated and proceeding in a normal manner on any highway or
46 roadway, cast a light upon animals or birds on or adjacent to such high-
47 way or roadway and there is no intent or attempt to locate such animals
48 or birds. Provided further, nothing in this subsection shall prevent
49 the hunting of unprotected or predatory wildlife with the aid of artifi-
50 cial light when such hunting is for the purpose of protecting property

1 or livestock, is done by landowners or persons authorized in writing by
2 them to do so and is done on property they own, lease or control; and pro-
3 vided further that the hunting and taking of unprotected or predatory
4 wildlife with the aid of artificial light on public lands is authorized
5 after obtaining a permit to do so from the director. The director may,
6 for good cause, refuse to issue such permit.

7 Other provisions of this subsection notwithstanding, the commission
8 may establish rules allowing the hunting of raccoon with the aid of an
9 artificial light.

10 7. Regulation of Dogs.

11 (A) No person shall make use of a dog for the purpose of pursuing,
12 taking or killing any of the big game animals of this state except
13 as otherwise provided by rules of the commission.

14 (B) Any person who is the owner of, or in possession of, or who har-
15 bors any dog found running at large and which is actively tracking,
16 pursuing, harassing or attacking, or which injures or kills deer
17 or any other big game animal within this state shall be guilty as
18 provided in section 36-1401(a)1.(F), Idaho Code. It shall be no
19 defense that such dog or dogs were pursuing said big game animals
20 without the aid or direction of the owner, possessor, or harbinger.

21 (C) Any dog found running at large and which is actively tracking,
22 pursuing, harassing, attacking or killing deer or any other big
23 game animal may be destroyed without criminal or civil liability
24 by the director, or any peace officer, or other persons authorized
25 to enforce the Idaho fish and game laws.

26 8. Attempt to Take Simulated Wildlife.

27 (A) Attempt to take, by firearm or any other contrivance capable
28 of killing an animal or bird, simulated wildlife in violation of
29 any of the provisions of this title or commission rules applica-
30 ble to the taking of the wildlife being simulated, when the sim-
31 ulated wildlife is being used by a conservation officer or other
32 person authorized to enforce Idaho fish and game laws or rules pro-
33 mulgated pursuant thereto. No person shall be found guilty of vio-
34 lating either this subparagraph, or subparagraph (B) of this para-
35 graph, provided that no other law or rule has been violated.

36 (B) Any person pleading guilty to, convicted of or found guilty
37 for attempting to take simulated wildlife within this state shall
38 be guilty of a misdemeanor and shall be punished as provided in
39 either subsection (c) or (e) of section 36-1402, Idaho Code, and
40 shall pay restitution in an amount of no less than fifty dollars
41 (\$50.00) for the repair or replacement of the simulated wildlife.

42 9. Devices Accessed via Internet.

43 (A) No person shall shoot at or kill any bird or animal in Idaho,
44 wild or domestic, including domestic cervidae governed under the
45 provisions of chapter 37, title 25, Idaho Code, with any gun or
46 other device accessed and controlled via an internet connection.
47 Accessing, regulating access to, or regulating the control of a
48 device capable of being operated in violation of this paragraph
49 shall be prima facie evidence of an offense under this paragraph.

(B) Any person pleading guilty to, convicted of or found guilty of a violation of this paragraph shall be guilty of a misdemeanor and shall be punished as provided in section 36-1402, Idaho Code.

10. Construct blinds near water troughs or stock ponds.

(A) No person shall construct a permanent or temporary blind, pit, platform, or tree stand within three hundred (300) feet of a water trough or stock pond on public land within the state of Idaho.

(B) Any person pleading guilty to, convicted of, or found guilty of a violation of this paragraph shall be guilty of a misdemeanor and shall be punished as provided in section 36-1402, Idaho Code.

SECTION 2. That Section 36-1401, Idaho Code, be, and the same is hereby amended to read as follows:

36-1401. VIOLATIONS. (a) Infractions. Any person who pleads guilty to or is found guilty of a violation of the following provisions of the fish and game code or the following rules or proclamations promulgated pursuant thereto is guilty of an infraction:

1. Statutes.

(A) Take, transport, use or have in possession bait fish as set forth in section 36-902(d), Idaho Code.

(B) Chumming as set forth in section 36-902(e), Idaho Code.

(C) Nonresident child under the age of fourteen (14) years fishing without a valid license and not accompanied by a valid license holder as set forth in section 36-401(a)2., Idaho Code.

(D) Use or cut a hole larger than ten (10) inches in the ice for ice fishing as set forth in section 36-1509(a), Idaho Code.

(E) Store fish without required tags/permits/statements as set forth in section 36-503, Idaho Code.

(F) Own, possess or harbor any dog found running loose and tracking, pursuing, harassing or attacking a big game animal as set forth in section 36-1101(b)7.(B), Idaho Code.

(G) Hunt migratory waterfowl without having in possession a signed federal migratory bird hunting stamp as set forth in section 36-1102(b)2., Idaho Code.

(H) Hunt migratory game birds without having in possession a license validated for the federal migratory bird harvest information program permit as set forth in section 36-409(k), Idaho Code.

(I) Trap in or on or destroy or damage any muskrat house as provided in section 36-1103(c), Idaho Code.

(J) Hunt migratory game birds with a shotgun capable of holding more than three (3) shells as provided and incorporated in section 36-1102(b), Idaho Code.

(K) Fail to purchase a muzzleloader permit as set forth in section 36-409(f), Idaho Code.

(L) Fail to purchase an archery permit as set forth in section 36-409(e), Idaho Code.

2. Rules or proclamations.

(A) Fish with a prohibited motor or watercraft.

(B) Fish for sturgeon without a sliding sinker or lighter test terminal line to the sinker.

- (C) Fish with hooks larger than allowed in that water.
- (D) Fish with barbed hooks in waters where prohibited.
- (E) Exceed any established bag limit for fish by one (1) fish, except bag limits for sturgeon and anadromous salmon and steelhead, where the bag limit is at least one (1) fish.
- (F) Fish with more than the approved number of lines, hooks, hook points, or crawfish traps.
- (G) Fish with bait where prohibited or fish in waters designated as fly fishing only with fishing gear other than fly rod, fly reel, fly line, or artificial flies.
- (H) Fish with two (2) poles without a two (2) pole permit, except ice fishing.
- (I) Fail to leave head and/or tail on fish while fish are in possession or being transported.
- (J) Snag or hook fish other than in the head and fail to release, excluding anadromous fish.
- (K) Fail to attend fishing line and keep it under surveillance at all times.
- (L) Fail to comply with requirements for mandatory check for big game, furbearer, or migratory birds; or animal part presentation; or the requirement for unsuccessful moose, mountain goat, bighorn sheep, and grizzly bear hunters to return unused tags.
- (M) Fail to leave evidence of sex or species attached as required on game birds or game animals.
- (N) Fail to comply with shot size or nontoxic shot restrictions for migratory game birds, upland game birds, or upland game animals.
- (O) Fail to release, report or turn in nontarget trapped animals.
- (P) Fail to complete required report on trapped furbearer.
- (Q) Fail to attach identification tags to traps.
- (R) Possess not more than one (1) game fish outside of established length requirements.
- (S) Park or camp in a restricted area, except length-of-stay violations.
- (T) Fail to validate upland game permit for department-stocked birds.
- (U) Fail to purchase a sharp-tailed grouse hunting permit when hunting for sharp-tailed grouse anywhere within the state, except licensed shooting preserves.
- (V) Fail to wear at least thirty-six (36) square inches of visible hunter orange above the waist when hunting locations where pheasants are stocked and the commission requires an upland game bird permit.
- (W) Fail to comply with upland game bird, upland game animal, migratory game bird, or crow shooting hours.
- (X) Public use restrictions. Activities prohibited unless specifically authorized by the commission or under lease, permit, contract, or agreement issued by the director, regional supervisor, or other authorized agent:

(i) Use watercraft on any waters that are posted against such use;

(ii) Conduct dog field trials not authorized by rule or permit;

(iii) Construct permanent or temporary blinds, pits, platforms, or tree stands where the soil is disturbed, trees are cut or altered, and using artificial fasteners such as wire, rope, or nails are used;

(1) Where the soil is disturbed;

(2) Where trees are cut or altered; or

(3) Within three hundred (300) feet of a water trough or stock pond on public land within the state of Idaho.

(iv) Shoot within, across, or into posted safety zones;

(v) Leave decoys unattended. Decoys cannot be put in place any earlier than two (2) hours prior to official shooting hours for waterfowl, and all decoys must be picked up and removed from the hunting site no later than two (2) hours after official shooting hours for waterfowl that particular day;

(vi) Discharge any paintball guns;

(vii) Place a geocache;

(viii) Use for group events of more than fifteen (15) people;

(ix) Use or transport any hay, straw, or mulch that is not weed seed-free certified;

(x) Have a dog at large or off leash where restricted;

(xi) Use any form of fireworks;

(xii) Place beehives or bee boards;

(xiii) Where value of property damage is less than one thousand dollars (\$1,000), disturb or remove soil, gravel, or minerals or allow livestock to graze or train except riding and pack animals, or cut, dig, or remove crops, trees, shrubs, grasses, forbs, logs, or fuel wood.

(Y) Fail to comply with requirements for accompanying a mentored or disabled hunter or for carrying written designation for assisting a disabled hunter.

(Z) Continue to fish on Henry's lake after reaching daily bag limit during the fishing take season.

(b) Misdemeanors. Any person who pleads guilty to, is found guilty of, or is convicted of a violation of the provisions of this title or rules or proclamations promulgated pursuant thereto, or orders of the commission, except where an offense is expressly declared to be an infraction or felony, shall be guilty of a misdemeanor.

(c) Felonies. Any person who pleads guilty to, is found guilty of, or is convicted of a violation of the following offenses shall be guilty of a felony:

1. Knowingly and intentionally selling or offering for sale or exchange, or purchasing or offering to purchase or exchange, any wildlife or parts thereof unlawfully killed, taken or possessed.

2. Releasing into the wild, without a permit from the director, any of the following wildlife, whether native or exotic: ungulates, bears, wolves, large felines, swine, or peccaries.

1 3. Unlawfully killing, possessing, or wasting any wildlife within a
2 twelve (12) month period having a single or combined reimbursable dam-
3 age assessment of more than one thousand dollars (\$1,000), as provided
4 in section 36-1404, Idaho Code.

5 4. Conviction within ten (10) years of three (3) or more violations of
6 the provisions of this title, penalties for which include either or both
7 a mandatory license revocation or a reimbursable damage assessment.

8 (d) The director shall update the house resources and conservation com-
9 mittee and the senate resources and environment committee during each leg-
10 islative session concerning new rules and proclamations containing penal-
11 ties.

12 SECTION 3. An emergency existing therefor, which emergency is hereby
13 declared to exist, this act shall be in full force and effect on and after its
14 passage and approval.